

HOUSE No. 3975

The Commonwealth of Massachusetts

PRESENTED BY:

Paul McMurtry

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to establishing a commission to address double utility poles in the Commonwealth.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Paul McMurtry</i>	<i>11th Norfolk</i>	<i>1/14/2025</i>

HOUSE No. 3975

By Representative McMurtry of Dedham, a petition (accompanied by bill, House, No. 3975) of Paul McMurtry for legislation to establish a special commission to investigate double utility poles. Telecommunications, Utilities and Energy.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to establishing a commission to address double utility poles in the Commonwealth.

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to address double utility poles in the commonwealth, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

- 1 (a) There shall be a special commission established to study and implement a solution for
2 the removal of double utility poles in the commonwealth that occurs when a replacement utility
3 pole is built alongside an existing utility pole and neither the replacement utility pole nor the
4 existing utility pole is removed. The commission shall consist of the following 6 members: (i)
5 the secretary of the office of energy and environmental affairs or the secretary's designee, who
6 shall serve as chair; (ii) a representative from the Massachusetts Department of Transportation;
7 (iii) a representative from the Massachusetts Municipal Association, Inc.; (iv) a representative
8 from Eversource Energy; (v) a representative from National Grid; and (vi) a representative from
9 Unitil Resources, Inc.

(b) The study shall include, but not be limited to:

(i) assessments on the current state of double utility poles in the commonwealth;

(ii) identification of any possible legal, financial and regulatory barriers involving the removal of double utility poles;

(iii) recommendations for legislation on removal of double utility poles;

(iv) analysis on the economic implications of removing double utility poles in the commonwealth;

(v) proposals on funding for the removal of double utility poles; and

(vi) establishing best practices and procedures for the removal of double utility poles.

(c) The commission shall prepare a report on its activities and on any findings and recommendations. Not later than December 31, 2026, the report shall be submitted to the: (i) chairs of the joint committee on telecommunications, utilities and energy; (ii) chairs of the joint committee on transportation; (iii) chairs of the senate and house committees on ways and means; and (iv) offices of the house and senate clerk.